

Nazirun Nisha v. State of U.P. and Others

Allahabad High Court · Division Bench · 23 July 2026 · Writ - C No. 26916 of 2026 · **Writ disposed; petitioner directed to Clause 6.5; fresh bill in four instalments**

HEADNOTE

A consumer seeking permanent disconnection while disputing outstanding bills is directed to file objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If she does so, the authority is to decide them, take a pragmatic view where the consumer is a widow, issue a fresh bill after meeting the objections, and accept deposit in four equal instalments. The Court does not examine the bills or grant disconnection.

FACTUAL SUMMARY

Nazirun Nisha, a widow whose husband died in 2016, sought a mandamus directing the respondents to consider her 19 January 2026 application for permanent disconnection. She said she had not used electricity since 2016 and that the bills were excessive. The department replied that outstanding dues remained on the old connection, and that she must first dispute the bills and arrears under Clause 6.5; only after that decision and clearance of dues could permanent disconnection follow.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — relegation to Clause 6.5 before permanent disconnection

HOLDING

A writ seeking a mandamus to consider an application for permanent disconnection, where the consumer disputes outstanding bills and arrears, is disposed of by directing the consumer to file objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the third respondent within four weeks. If she does so, those objections are to be considered and disposed of within two months. The department is to take a pragmatic view where the petitioner is a widow, issue a fresh bill after meeting the objections, and allow deposit in four equal instalments. The Court does not decide the bills or order disconnection. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILLS AND ARREARS

Left to the Clause 6.5 authority; a fresh bill is to issue after the objections are met. ¶ 5-6

NOT DECIDED — WHETHER PERMANENT DISCONNECTION SHOULD BE GRANTED

The department submitted that disconnection follows only after the 6.5 objections are decided and outstanding dues are cleared. The Court did not order disconnection. ¶ 4-6